

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: July 18, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	20CV368954	CHUN-CHE CHEN vs BRENT LEE	Motion: Consolidate 20CV368954 & 20CV368958 By stipulation of the parties and good cause appearing, the motions are GRANTED. Defendant to prepare the final order within 10 days of the date of the hearing.

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Calendar Line 1 and 2

Case Name: *Thomas Haxton v. City of Palo Alto et al.*

Case No.: 25CV459326

I. PROCEDURAL BACKGROUND

On February 19, 2025, self-represented plaintiff Thomas Haxton (“Plaintiff”) filed his complaint against several defendants,¹ including the City of Palo Alto (“Defendant”).

On March 6, 2025, the parties stipulated to allow Plaintiff to file a first amended complaint, despite him having the ability to file an amended pleading once as a matter of right. On April 3, 2025, the Court (Hon. Nishigaya) signed the stipulation which indicated that “Plaintiff may file a First Amended Complaint, attached hereto as Exhibit 1. . .” (See Court’s April 3, 2025 Order.)

On March 24, 2025, after the parties signed the stipulation, but before the Court issued its order stating that “Plaintiff shall file the First Amended Complaint no earlier than April 6, 2025, and no later than the later of (1) April 8, 2025, or (2) 15 days after the date of this Order[,]” Plaintiff filed a pleading labeled First Amended Complaint. This pleading differed from Exhibit 1 attached to the stipulation. No amended pleading was filed after the Court issued its order.

On April 4, 2025, Defendant filed a demurrer and motion to strike portions of Exhibit 1 of the stipulation (hereinafter, “Ex. 1 – FAC”). On April 29, 2025, Defendant filed a second motion to strike the entire FAC filed on March 24, 2025 (hereinafter, “March FAC”). Each motion is opposed, and replies have been filed. The motion to strike was set to be heard on July 16, 2025 and the demurrer was set for hearing on July 18, 2025. Per Code of Civil Procedure section 435, subdivision (b)(3), the Court will hear all motions on July 18, 2025.

On July 7, 2025, Plaintiff filed a motion for leave to file a second amended complaint. This motion is set to be heard on October 10, 2025.

II. FACTUAL BACKGROUND

According to the allegations of Ex. 1 – FAC, Plaintiff served as the cross country, track and field head coach, in a volunteer capacity, from August 28, 2023 through May 23, 2024 at JLS Middle School in Palo Alto. (Ex. 1 - FAC, ¶ 10.) In May 2024, Plaintiff submitted complaints regarding the sports program and thereafter brought the complaints before the Palo Alto City Council. (Ex. 1 - FAC, ¶¶ 12-13.) Plaintiff then engaged in political advocacy aimed at improving middle school sports and founded the Palo Alto Middle School Athletics Community Organization. (Ex. 1 - FAC, ¶ 14.) In response to this, Defendant retaliated against Plaintiff, including declining to rehire him for the 2025 season, despite coaching shortages. (Ex. 1 - FAC, ¶¶ 15-16.)

¹ On July 7, 2025, Plaintiff filed a request to dismiss the individual defendants without prejudice.